

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

Record class: jointly prepared appendix roadmap and district-record certification.

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-CA4-26-CV-4104 · Joint appendix

Joint Appendix Cover, Index, and Certification

Filed March 16, 2026.

Nolan Rusk, Appellant, v. Mara Ellison, Appellee

Counsel jointly submit the materials designated from Western District of Virginia Civil Action No. SYN-WDVA-25-CV-0733. The appendix preserves the district clerk's consecutive pagination from 1 through 275. Its inclusion of a document does not waive a relevance, interpretation, or jurisdictional objection and does not convert disputed evidence into a finding.

The record contains authenticated body-camera derivatives but no machine-created reconstruction of unseen events. The critical interval from 19:53:08 through 19:53:22 remains visually obstructed in Rusk's recording, and Vega's angle does not reliably show the hands. The parties preserve their different inferences from movement and audio.

The following index identifies each complete source and its district-record span. Abbreviated descriptions are navigational only. The January 9 opinion remains the authoritative statement of which facts were assumed for the legal qualified-immunity ruling.

The appendix is a closed reproduction of materials placed before Judge Mercer. It contains no appellate declaration, supplemental expert work, or post-order factual exhibit. Separate appellate filings remain on this Court's docket and are not interleaved with the district sequence.

Index — pleadings and contemporaneous records

Record material	District pages
Complaint	JA1–JA9
Defendants' Answer	JA10–JA16
Amended Complaint Against Officer Nolan Rusk	JA17–JA24
Officer Rusk's Answer to Amended Complaint	JA25–JA31
911 Welfare-Check Call Transcript and CAD Event Record	JA32–JA38
Officer Rusk Incident and Use-of-Force Report	JA39–JA44
Officer Priya Vega Supplemental Report	JA45–JA50
EMS Patient Care Report	JA51–JA56
Emergency Department and Imaging Records	JA57–JA63
Crisis Stabilization Plan and Follow-Up Records	JA64–JA68

These items establish the changing pleadings, the dispatch purpose, the officers' reports, and the contemporaneous treatment record. They also preserve disagreement about physical conduct. The welfare call reports a medication and mental-health crisis without a weapon or crime. The medical sources document an abrasion, two superficial contact burns, shoulder strain, and no fracture. Neither proposition determines whether the alleged strike or equipment reach occurred. The amended pleading narrows the litigants to Ellison and Rusk, while the answers preserve Rusk's immunity defense. Dates printed in the index describe district-record order rather than the sequence in which every underlying event happened.

Index — recordings, time maps, and authentication

Record material	District pages
Certified Transcript of Rusk Body-Worn-Camera Recording	JA69–JA76
Rusk Camera Frame Sequence and Time Map	JA77–JA82
Occlusion and Field-of-View Annotated Frame Analysis	JA83–JA89
Certified Transcript of Vega Body-Worn-Camera Recording	JA90–JA96
Synchronized Camera-Audio and Dispatch Comparison	JA97–JA101
Body-Camera Custodian Declaration and Export Log	JA102–JA106

The parties stipulate that the designated exports and accurate transcript conventions are authentic for appellate presentation. They do not stipulate that the audio identifies every movement or that either field of view depicts Ellison's hands continuously during the drive-stun sequence. Sergeant Lila Grant's declaration explains custody and export integrity; the timing documents align sources without filling the visual obstruction.

Native media remain maintained under the district protocol. Counsel will coordinate with the Clerk if playback is requested. Printed transcript notation and selected authenticated frames aid navigation but do not replace the underlying source or enlarge what a camera could observe. The time map uses the common event clock adopted below. Its entries distinguish an observable frame condition from a witness's later account, and the appendix retains those limiting notes.

Index — testimony and expert materials

Record material	District pages
Deposition of Mara Ellison	JA107–JA117
Deposition of Nolan Rusk	JA118–JA130
Deposition of Iris Ellison	JA131–JA140
Deposition of Officer Priya Vega	JA141–JA150
Deposition of Paramedic Mateo Cole	JA151–JA159
Dr. Dana North Police-Practices Report and Excerpts	JA160–JA169
Professor Adrian Crane Video/Human-Factors Report and Excerpts	JA170–JA178
Retired Captain Rowan Pike Use-of-Force Report and Excerpts	JA179–JA186

Ellison and Rusk provide opposing sworn accounts of the hidden physical movements. Vega cannot reliably confirm the position of the hands during the pivotal seconds. Cole addresses assessment and transport, not the unseen contact. The experts apply different assumptions and do not possess independent knowledge of the alleged strike or reach.

The parties reserve all objections previously stated in the joint chart. Inclusion permits the Court to understand the district ruling; it does not invite appellate credibility findings. North and Pike reach different practice opinions because they apply different factual premises. Crane's limited technical conclusion concerns visibility and synchronization, not whether either principal witness testified truthfully or whether the resulting force was legally reasonable.

Index — summary-judgment submissions and order

Record material	District pages
Officer Rusk's Motion for Summary Judgment	JA187–JA193
Memorandum Supporting Rusk's Motion	JA194–JA205
Rusk's Statement of Undisputed Material Facts	JA206–JA212
Mara Ellison's Opposition	JA213–JA225
Ellison's Response to Material Facts	JA226–JA232
Officer Rusk's Reply	JA233–JA237
Joint Body-Camera Objections and Record-Citation Chart	JA238–JA241
Memorandum Opinion and Order Denying Summary Judgment	JA242–JA253

The complete motion sequence is reproduced so that neither the evidentiary dispute nor the assumed-facts legal holding appears without context. The January 9 opinion denies Rusk's effort to establish a strike, belt reach, and immediate danger as undisputed. It separately concludes that the force was unconstitutional and clearly proscribed if Ellison only pulled without striking, grabbing, fleeing, reaching toward equipment, or posing immediate danger.

No party treats that conditional legal ruling as a trial finding. The appellate briefs cite these materials to define jurisdiction, the assumed factual set, and the qualified-immunity question. The fact statements are paired so the Court can locate each denial and supporting citation rather than reading Rusk's asserted sequence as an agreed chronology. The joint chart supplies the parties' common terminology for media limits.

Index — commencement, appeal, and record certification

Record material	District pages
Civil Cover Sheet, Summons, and Waiver Packet	JA254–JA256
Case Assignment and Initial Scheduling Order	JA257–JA260
Officer Rusk's Notice of Interlocutory Appeal	JA261–JA263
Transcript Order Form and Record Designation	JA264–JA267
Certified District Docket and Record Certificate	JA268–JA275

These documents identify the originating action, assignment to Judge Elaine Mercer, timely notice, absence of an additional summary-judgment hearing transcript, designated materials, and district clerk certification. The notice invokes appellate review only to the extent the qualified-immunity denial presents an immediately appealable legal question.

Counsel certify after comparison with the district docket that this appendix contains complete, legible copies of the listed items in their certified order. No material created solely for appeal has been inserted into the district-page sequence. The index descriptions do not amend the source documents. Counsel also certify electronic service and joint filing on March 16, 2026.

Submitted jointly by fictional counsel for Officer Nolan Rusk and Mara Ellison.